

Our reference     MRB-2026-118

Date                14 September 2026

To                    The Shariah Supervisory Board

From                N. Haddad, Head of Treasury

Subject             Commodity murabaha facility — request for an opinion

We are asked by a corporate client to provide a commodity murabaha facility of AED 4,250,000 for a term of thirty-six months. The draft agreement prepared by our counsel is attached at page 2 and has not yet been executed.

The board's opinion is sought before we respond to the client. We would be grateful for a determination on whether the structure as drafted may be offered, and for any amendments the board requires. We have not taken a view internally and no commitment has been given to the client.

Two matters we expect the board will wish to look at. The commodity is purchased through a broker and our operations desk holds it for a short period before the onward sale. And clause 3.4 provides for an additional amount on late payment, which our counsel has drafted as retained by the bank; we understand the board may take a different view of where it should go.

We are content to wait for the board's ordinary process and have told the client to expect a response in the usual period.

N. Haddad  
Head of Treasury, Al Manara Bank

COMMODITY MURABAHA MASTER AGREEMENT

Between AL MANARA BANK (the "Bank") and the counterparty named in the Transaction Confirmation (the "Customer"). Draft of 14 September 2026, not for execution.

1. PURCHASE BY THE BANK

1.1     The Bank shall purchase the Commodity from the Supplier for a Cost Price of AED 4,250,000 and shall take delivery of the Commodity at the Supplier's warehouse.

1.2     Title to and risk in the Commodity shall pass to the Bank upon such delivery, and the Bank shall bear all risk of loss or damage to the Commodity from that moment until the sale to the Customer is concluded under clause 2.

2. SALE TO THE CUSTOMER

2.1     Following the Bank's acquisition of the Commodity, the Bank shall sell the Commodity to the Customer at the Cost Price plus a Profit Margin of AED 318,750.

2.2     The Cost Price and the Profit Margin shall each be disclosed to the Customer in writing before the Customer signs the Transaction Confirmation.

2.3     The Commodity shall be identified in the Transaction Confirmation by warehouse receipt number, quantity and grade.

3. PAYMENT

### **3. PAYMENT**

- 3.1 The Customer shall pay the Sale Price in thirty-six equal monthly instalments commencing on 1 November 2026.
- 3.2 Payment shall be made to the account notified by the Bank and shall be made without set-off or counterclaim.
- 3.3 Time shall be of the essence in respect of each instalment.
- 3.4 Should the Customer fail to pay any instalment when due, an additional amount of 1.5% per month shall accrue on the outstanding balance and shall be retained by the Bank as compensation for the delay.

### **4. THE CUSTOMER'S UNDERTAKING**

- 4.1 The Customer's undertaking to purchase the Commodity is binding upon the Customer from the date of this Agreement, and the Bank gives no corresponding undertaking to sell until it has acquired the Commodity.

### **5. RESALE BY THE CUSTOMER**

- 5.1 The Customer may sell the Commodity to any third party at its own discretion. The Bank shall not act as the Customer's agent for that sale and shall not repurchase the Commodity.